

Financial Statement Form 4

Provincial Court Family Rules

You can complete and file most family forms online using the Family Law Act Online Forms Service.

Access the service at justice.gov.bc.ca/apply-for-family-order.

The free service includes guided pathways that ask you questions and put your answers into the required court forms. When you're finished, you can save and file your forms electronically or print them to file in person.



A PDF version of this form is available online for download at www.gov.bc.ca/court-forms.

For courthouse locations, addresses, and contact information visit: www.gov.bc.ca/courthouselocations

Need assistance with how to complete this form?

Refer to the guidebook if you need more information about when to file a financial statement and how to complete the form. Find it online, with interactive links, at www.gov.bc.ca/court-forms or pick up a printed copy from your local court registry.

Family law:

The [Provincial Court Family Rules](#) set out the steps that you must take and the forms you must complete in a family law case. These rules apply to cases in Provincial Court about matters under the [Family Law Act](#) and the [Family Maintenance Enforcement Act](#).

You can find the Rules and Acts on the BC Laws website at www.bclaws.gov.bc.ca.

Preparing a Financial Statement Form 4

Complete this form **to provide financial information** to the court and the other party.

If a party does not give their complete, true, and up-to-date income information when needed, the court can:

- order that the income information be provided
- assume the party's income is a certain amount for support purposes and make an order based on it
- require a party to give security
- require a party to pay the other party's expenses, an amount to the other party up to \$5,000, or a fine up to \$5,000

A person must not use or disclose any information of any other parties contained in their financial statement except to the extent necessary to resolve a case under the Provincial Court Family Rules.

What parts of the financial statement do you need to fill out? The form has six parts. You may not have to complete the form or all its parts. The parts you must complete depend on which situation applies to you as set out in the chart below. Each part needs to be completed only once regardless of the number of applicable situations for which it is required. **If none apply, you do not have to complete the form.**

Situation	Complete the part(s) identified below					
	Part 1	Part 2	Part 3	Part 4	Part 5	Part 6
☐ There is an application for spousal support	✓	✓	✓			
☐ I am being asked to pay or am paying child support	✓					
☐ Parenting time is split or shared	✓	✓	✓			
☐ There is a child at or over 19 years old	✓	✓	✓			
☐ A party has been acting as a parent to a child of the other party	✓	✓	✓			
☐ The paying parent earns more than \$150,000 per year	✓	✓	✓			
☐ I am applying for an order about payment of arrears	✓	✓	✓			
☐ I am applying for special or extraordinary expenses	✓	✓	✓	✓		
☐ The other party is applying for special or extraordinary expenses	✓	✓	✓			
☐ I am claiming undue hardship	✓	✓	✓		✓	✓
☐ The other party is claiming undue hardship	✓	✓	✓		✓	
☐ I am replying to an application about child support	✓					
☐ I am applying and will receive child support and none of the other situations above apply at this time	You do not have to complete the form					

Note: You may choose to complete any additional part of this form. The court may require additional disclosure of financial information that it considers necessary for the purposes of the determination of an amount of a support order.



Need legal help?

The financial statement is very important. It can be hard to calculate the income used to decide the amount of child support or spousal support. Take your time and read it carefully. Be sure to include everything so the statement shows your situation accurately. Getting advice from a lawyer can help. You can find a lawyer through:

Legal Referral Service

Visit <https://bclegal.help/> or call at 604-687-3221 to consult a lawyer for up to 15 minutes for free

Legal Aid, Duty Counsel and Family Advice Lawyers

Visit <https://legalaid.bc.ca> or call 1-866-577-2525

Legal Services and Resources

Visit the ClickLaw Legal Services page at www.clicklaw.bc.ca/services



Getting started

Everyone who is required to prepare a financial statement **must attach a copy** of their **tax return** and related schedules and **notice of assessment** and reassessment for each of the three most recent taxation years. You must also attach a copy of the **proof of income** from each source of income you currently have.

If you don't have the documents ready, start collecting these documents now.

To complete the form, you might also need:

- records of expenses and debts
- records of assets
- the amount for applicable expenses for each child
- income information about other adults living in your household



Filling out the form and preparing to file it

You need to **complete the first page and each part that applies to your situation**. Use the chart on the previous page to determine which parts you must fill out.

Make sure you follow the instructions in the form and include all the required information.

If you complete the form by hand, be sure it's readable.

How do I prepare the form for filing?

- collect the completed form and part(s) that apply to your situation
- collect your tax returns, notices of assessment and proof of income documents
- print or make copies of all documents: one set for you, one set for the court, and one set for each other party
- staple or secure each package of documents together



Signing the document with a commissioner for taking affidavits

The financial statement is used to present evidence to the court. It contains facts that you must swear under oath or affirm to be true. To swear or affirm an affidavit, you must meet with a commissioner for taking affidavits and sign the document in front of them.

Lawyers and notaries are all commissioners for taking affidavits. The court registry also has staff who are commissioners for taking affidavits who can help you swear or affirm your affidavit for free.

What if I can't get my financial statement sworn or affirmed?

If you cannot get the document sworn or affirmed before the document is filed, [Rule 172](#) allows the unsworn document to be filed if you will be available to swear or affirm that the contents of the document are true during your court appearance.



Filing the application at the registry

After you've filled out your form, you must file it at the [Provincial Court Registry](#) where the existing Provincial Court case with the same parties is filed.

File the form:

- electronically using the [FLA Online Forms Service](#)
- in person at the court registry
- by mail
- by email, as referenced in Notice to the Profession and Public [NP 28 Current Court Operations](#), or
- by fax filing using the [Fax Filing Cover Page Form 52](#)

There are no fees for filing Provincial Court family documents.

Be sure to bring all copies of the documents to the registry if you are filing in person.

The registry clerk will review your package to make sure it's complete before filing it. They'll give you a copy for your records along with a copy to have served on the other party.



Serving the document

Serve a copy of the financial statement on each other party.

If you are filing your financial statement:

- with your Application About a Family Law Matter, it is served along with the application
- with your Reply to a Family Law Matter, the registry will give a copy to the other party. This counts as you serving it on them.
- in any other circumstance, it must be served on the other party by ordinary service to their address for service

See the guidebook if you need more information about serving documents.

Unless the registry serves it, you may need proof the documents were served. The person serving the documents must complete a [Certificate of Service Form 7](#) to prove service of the document took place. You must attach a copy of the documents to the Certificate of Service. Remember to make a copy before the documents are served.

Financial Statement

Form 4

Provincial Court Family Rules
Rules 3, 25, 28 and 172

COURT STAMP

Registry location:

Court file number:

Last names of parties:

Party 1/ Party 2

Document number:

For registry use only

This Financial Statement provides the financial information of a party in support of a claim for support.

Please read before completing the form:

- This form has six parts. Which parts you must complete depends on your situation. You may not have to complete the form at all.
- For guidance filling in this form, including which parts may apply to you, please read the guidebook. The guide is available online at www.gov.bc.ca/court-forms or from your local court registry.

I, of of

Full name Occupation Address of person, City, Province



For more information about swearing or affirming an affidavit, see the guidebook.

SWEAR OR AFFIRM THAT:

1. The information set out in this financial statement is true, to the best of my knowledge.

2. I have made complete disclosure in this financial statement of:

Select all options that apply. Complete the part(s) as required.

- ☐ my income, including benefits and adjustments, if any, in **Part 1**
- ☐ my expenses and debts, in **Part 2**
- ☐ my assets, in **Part 3**
- ☐ special or extraordinary expenses, if any, in **Part 4**
- ☐ income of other person(s) in my household, in **Part 5**
- ☐ undue hardship, in **Part 6**



For more information about which part(s) you may need to complete, see the guidebook.

Sworn or affirmed before me

at , British Columbia

City

on

Date

A commissioner for taking affidavits in British Columbia
[print name or affix stamp of commissioner]

Signature



This document must be signed only with a commissioner for taking affidavits. **Do not sign** the document until they tell you to. You will sign it with them.

Part 1 | Income

Tax documents

1. I am **attaching** a copy of each of the following documents to my financial statement:
- ☐ my **tax return and related schedules** for each of the **three** most recent taxation **years**; and
 - ☐ any **notice of assessment and reassessment** issued by the CRA for each of the **three** most recent taxation **years**



You must attach your last 3 years of tax returns and notice of assessment/reassessment.

Sources and amounts of income

2. All my **sources** of income and **amounts** of income **per month** are as follows:
Select and complete all options that apply. Please use gross amounts (before taxes or deductions).

- ☐ employment income of \$ per month from
- ☐ employment insurance benefits of \$ per month
- ☐ workers compensation benefit of \$ per month
- ☐ interest and investment income of \$ per month
- ☐ pension income of \$ per month
- ☐ government assistance income of \$ per month from
- ☐ self-employment income of \$ per month
- ☐ trust income of \$ per month
- ☐ other income of \$ per month from



The child support guidelines describe the requirements for disclosure, calculating income, and proof of income that are required for child support applications.

The specific income information that must be provided is set out in s. 21 of the Child Support Guidelines.

Proof of income

3. I am **attaching proof of income** from all applicable sources, including my:

Select and attach all options that apply

- ☐ most recent pay stub or statement of earnings, or a letter from my employer stating my salary and/or wages
- ☐ most recent employment insurance benefit statement and record of employment
- ☐ most recent workers compensation benefit statement
- ☐ most recent interest and investment statement
- ☐ most recent pension income statement
- ☐ most recent government assistance statement
- ☐ self-employment income for the three most recent taxation years, including:
 - (i) the financial statements of my business or professional practice, other than a partnership, and
 - (ii) a statement showing a breakdown of all salaries, wages, management fees or other payments or benefits paid to, or on behalf of, persons or corporations with whom I do not deal at arm's length
- ☐ confirmation of income and draw from, and capital in, a partnership, for the three most recent taxation years
- ☐ corporate income for the three most recent taxation years, including:
 - (i) the financial statements of the corporation and its subsidiaries, and
 - (ii) a statement showing a breakdown of all salaries, wages, management fees or other payments or benefits paid to, or on behalf of, persons or corporations with whom the corporation, and every related corporation, does not deal at arm's length
- ☐ trust settlement agreement and the trust's three most recent financial statements
- ☐ other (*specify*):



You must attach a copy the proof of income from each source you identified in this section.

Changes to income

4. *Select whichever option is correct and complete any required information*

- ☐ I do not expect any significant changes to my total income this year.
- ☐ I expect my total income this year to be \$ because:

Annual income summary

5. Complete the table below. **Use the gross amounts** (before taxes or deductions) **except where the word “net” appears**. Put “0” in a field if it doesn’t apply to you.

Total income		
1	My total annual income before adjustments	\$
Adjustments to total income in accordance with Schedule III of the Child Support Guidelines		
Deductions (use annual amounts)		
2	Spousal support received	+ \$
3	Split-pension amount	+ \$
4	Employment expenses including union dues and other professional dues	+ \$
5	Social assistance received for other members of your household	+ \$
6	Excess portion of dividends from taxable Canadian corporations	+ \$
7	Actual business investment losses	+ \$
8	Carrying charges	+ \$
9	Partnership or sole proprietorship income required to use for capital in the partnership/proprietorship	+ \$
10	Total deductions from income (add lines 2 through 9)	- \$
Additions (use annual amounts)		
11	Offset of capital gains and capital losses (if zero or less, indicate “0” in this line)	\$
12	Payments made from self-employment income including wages to non-arm’s length parties except for the portion that is necessary to earn self-employment income	+ \$
13	Capital cost allowance for property	+ \$
14	Value of exercised employee stock options with Canadian-controlled private corporation	+ \$
15	Total additions to income (add lines 11 through 14)	+ \$
16	Annual income for child support purposes (line 1 minus line 10 plus line 15)	\$
17	Add Any benefit paid to you for a child for whom special or extraordinary expenses are being requested that is not included in the income on line 16	+ \$
18	Add Spousal support received from other party (if any)	+ \$
19	Subtract Spousal support paid to other party (if any)	- \$
20	Annual income for special or extraordinary expenses (line 16 plus lines 17 and 18, minus line 19)	\$
Other additions to income for spousal support (complete only if there is an application for spousal support)		
21	Total child support received	+ \$
22	Social assistance received for other members of your household	+ \$
23	Any government benefit received for a child that is not included in the income on line 16	+ \$
24	Annual income for spousal support purposes (line 16 plus lines 21 through 23)	\$



The adjustments you can apply to calculate your income for support are different than you might be able to claim for taxes.

This section will collect information about your income and the adjustments that can be applied.



If your income and adjustments are expected to be similar to your most recent federal income tax return, you can use those amounts for the annual income summary. If not, record what you expect the amounts to be.



For tips and information about how to complete this section, see the guidebook.

Part 2 | Personal expenses and debts

Complete this part only if you are required to provide information about expenses and debts.

Expenses

An expense is the amount of money **you spend** on something.

Estimate how much you pay **monthly** and **yearly** for each of the expenses listed below.

You may be asked to provide the court with proof of an amount or a breakdown of how you came to the estimate.

Expenses			TOTAL	
			Monthly	Yearly
Housing				
	Monthly	Yearly		
Rent/mortgage	\$	\$		
Property taxes and strata fees	\$	\$		
Utilities include electricity, gas, water, waste, home phone, and internet	\$	\$		
Homeowner/renter's insurance	\$	\$		
Home maintenance and repair	\$	\$		
Other	\$	\$		
Housing Subtotal:	\$	\$	\$	\$
Food & Household Supplies				
	Monthly	Yearly		
Groceries	\$	\$		
Eating out	\$	\$		
Household supplies such as cleaning supplies, lightbulbs, batteries, toilet paper and laundry detergent	\$	\$		
Other	\$	\$		
Food & Household Supplies Subtotal:	\$	\$	\$	\$
Transportation				
	Monthly	Yearly		
Car insurance and car loan payments	\$	\$		
Fuel	\$	\$		
Maintenance and repairs	\$	\$		
Public transit, taxis and parking	\$	\$		
Other	\$	\$		
Transportation Subtotal:	\$	\$	\$	\$
Clothing & Self-care include clothing, hairdresser/barber and cosmetics			\$	\$
Health & Medical include regular dental care, orthodontics, medicine, eyeglasses or contact lenses			\$	\$
Children include school activities, extracurricular activities, tuition/school fees, camps, babysitting, allowances and daycare			\$	\$
Miscellaneous/Other include gifts & donations, alcohol, tobacco & cannabis, entertainment & recreation, cell phone, cable, subscription services, pet expenses and vacations			\$	\$
Premiums, Contributions and Debt Repayment include life or term insurance premiums, RRSP or other contributions, debt repayment (for expenses not itemized above)			\$	\$
Reserve for income tax			\$	\$
Other (specify):			\$	\$
Total			\$	\$



See the chart in the introduction to this form to determine if this part applies to your situation.



For tips and information about how to complete this section, see the guidebook.



Keep a record of how you calculated an amount. You may need to provide it to the court.

You may also be asked to provide proof of daily living expenses such as bill payments and bank statements.

Debts

A debt is an amount of money **you owe** someone that you have a duty to pay.

Identify any outstanding debts. **Do not record** the monthly payment for mortgage, car loans, credit card payments or other debts included in the expenses section above, just the total balance owing.

You may be asked to provide the court with proof of the debt.

Name of creditor <i>(name of bank, finance company, person, etc.)</i>	Reason for borrowing <i>(for example, mortgage, car loan, school)</i>	Balance owing
		\$
		\$
		\$
		\$
		\$
		\$
		\$
		\$
Total		\$



You don't have to show proof of your debts now, but you should be prepared.

Proof of a debt may include:

- mortgage statements
- credit card statements
- car payment or other loan statements
- student loan or line of credit
- court orders requiring you to pay



For tips and information about how to complete this section, see the guidebook.

Part 3 | Assets

Complete this part only if you are required to provide information about assets.

An asset is something of value that **you own** or that belongs to you.

1. List all your assets in the table below. Provide a brief description of the asset and how much the asset is currently worth (the value).

Asset	Description of asset	Current value of asset
Real estate		\$
Cars/Boats/Vehicles		\$
Cash assets including cash and bank accounts		\$
Investments including TFSAs, RRSPs, stocks and bonds, pensions		\$
Loans and credit (money owing to me)		\$
Other including precious metals, art, jewellery, or other items of high value		\$
Total		\$

i See the chart in the introduction to this form to determine if this part applies to your situation.

i Be sure to list **all** bank accounts, even if the value is small.

Disposition of assets

2. Select the statement that is true and provide any additional information as required
- ☐ **No**, I have **not sold or disposed** of an asset in the last two years
- ☐ **Yes**, I have **sold or disposed** of an asset in the last two years as follows:
Please describe the asset(s) you sold or disposed of and indicate how much money you made from the sale or disposal
-
-
-
-

Part 4 | Special or extraordinary expenses

Complete this part only if you have made a claim for special or extraordinary expenses on your application or counter application about a family law matter.

Special or extraordinary expenses are costs of raising a child that go above and beyond what is covered by the guideline table amount for child support.

In a child support order, the court may, on either party's request, provide an amount to cover all or any portion of the expenses set out in s. 7 of the Child Support Guidelines (included here in this Part).

The guiding principle for s. 7 expenses is that the expense is shared in proportion to the respective incomes after deducting from the expense, the contribution, if any, from the child.

Complete the table below about your claim for **special or extraordinary expenses**.

To complete the table:

- add the name of each child you have a claim for expenses for in the top part of the table
- include the amount for each applicable expenses for each child in the table
- you may leave any field blank if it does not apply

Provide the **net** amount for each expense.

The amount for the expenses **may be estimated**.

You **may be asked to provide** the court with **proof** of an amount or a **breakdown** of how you came to the estimate.

The following special or extraordinary expenses (net of tax credits, subsidies, deductions, and credits and contributions from the child(ren)) are included in my claim for child support:

Name of Child:				
Special and Extraordinary Expense	Annual Amount	Annual Amount	Annual Amount	Annual Amount
Childcare expenses	\$	\$	\$	\$
Portion of medical/dental premiums attributable to child	\$	\$	\$	\$
Health related expenses that exceed insurance reimbursement by at least \$100	\$	\$	\$	\$
Extraordinary expenses for primary or secondary school	\$	\$	\$	\$
Post-secondary school expenses	\$	\$	\$	\$
Extraordinary extracurricular activities expenses	\$	\$	\$	\$
Total	\$	\$	\$	\$



For tips and information about how to complete this part, see the guidebook.



To calculate the net amount, subtract from the gross amount tax credits, subsidies, deductions, and credits and contributions from the child.



Keep a record of how you calculated an amount. You may need to provide it to the court.
You may also be asked to provide proof of the amount.

Part 5 | Income of other persons in household

Complete this part only if **you or the other party** have made a claim for undue hardship.

To determine if an amount for child support other than the guideline amount should be paid, the court must look at each household's standard of living as set out in s. 10(3) of the Child Support Guidelines.

The court may require additional details about a spouse, partner or other adult person living in your household to be able to apply the comparison of household standards of living test in Schedule II of the Child Support Guidelines.

Complete all sections that apply to your circumstances. You may leave a section blank.

1. ☐ I live alone

2. ☐ I am **married to** or **in a relationship with** the following **person I am living with**:

Full name of person	Their annual income

3. ☐ I/we live with the following other adult(s):

Full name of person	Their annual income

4. ☐ I/we have **child(ren)** who live(s) in the home
Number

5. My spouse/partner or other adult(s) residing in the home contribute(s) about \$
per towards the household expenses.
Frequency of contribution(s)



The annual income of the other person must include all sources of income just as you have in Part 1. This includes employment, benefits, investment and business income.



Household expenses include those expenses you identified in Part 2. Indicate how much your spouse, partner or other adult in the household is contributing towards those expenses.

Part 6 | Undue hardship

Complete this part only if **you** have made a claim for undue hardship.

Sometimes the amount of child support determined under the child support guidelines, when combined with other circumstances, may create undue hardship for a person or their child.

Complete all sections that apply to your circumstances. You may leave a section blank.

1. ☐ I have an **unusual** or **excessive** amount of **debt** I incurred **to support my family** prior to separation **or to earn a living** as follows:

Name of creditor and reason for borrowing (name of bank, finance company, etc.)	Balance owing	Annual debt repayment

2. ☐ I have **unusually high expenses** to exercise **parenting time** or **contact** with the child(ren) as follows:

Please describe the expenses you have

3. ☐ I have a **legal duty to support another person**, such as a person who is ill or disabled, or a former spouse

Name of adult person you support	Monthly amount paid for support	Annual amount paid for support

4. ☐ I have a **legal duty to support a dependent child** from another relationship

Name of adult person you support	Monthly amount paid for support	Annual amount paid for support

5. ☐ I have **other undue hardship circumstances** as follows:



The court can make a child support order for an amount different from the standard *Guideline* amount on the grounds that the party or a child would otherwise suffer undue hardship. Undue hardship applications must be denied if the court finds that the party would have a higher household standard of living than the other party's household after paying the standard amount [s. 10 Child Support Guidelines].